

24. 9:01 AM CASE NUMBER: C25-00276

CASE NAME: CHRISTOPHER SEARS, PHD VS. VIVIANE SIINO, PHD

*HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING PRODUCTION OF NON-PRIVILEGE LOGS

FILED BY: SEARS, CHRISTOPHER, PHD

TENTATIVE RULING:

Plaintiff Christopher Sears, PhD's Motion for Order compelling Production of Non-Privileged Materials and Privilege Logs pursuant to Cal. Code of Civ. Proc. § 2031.240(c)(1) and for an In Camera Review under Cal. Evid. Code Section 956 is vacated and referred to the Discovery Referee Summer Nastich, Esq.

The Court admonishes Plaintiff and reminds him that any and all discovery motions shall be referred to the Discovery Referee pursuant to the Court's order appointing Discovery Referee filed on September 19, 2025. Discovery motions should not be filed with the Court after referral.

The Court also places Plaintiff on notice of the following statute: Cal. Code of Civ. Proc. §§ 391(b)(2)&(3) and Section 391.7, which state:

Section 391: As used in this title, the following terms have the following meanings:

(a) "Litigation" means any civil action or proceeding, commenced, maintained or pending in any state or federal court.

(b) "Vexatious litigant" means a person who does any of the following:

(2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in *propria persona*, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.

(3) In any litigation while acting in *propria persona*, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.

Section 391.7(a): In addition to any other relief provided in this title, the court may, on its own motion or the motion of any party, enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in *propria persona* without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be punished as a contempt of court.

Courtroom Clerk's Session
Add On

25. 9:00 AM CASE NUMBER: C25-01880

CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the Motions on calendar for Lines 16 and 17. If the tentative rulings for Lines 16 and 17 are uncontested, then the Parties are ordered to appear for a further CMC on September 14, 2026 at 8:30 a.m. in Department 16. The Parties are also further ordered to meet and confer to discuss alternative dispute resolution and shall file a case management conference statement at least five (5) court days before the CMC.

Law & Motion Add ON

26. 9:00 AM CASE NUMBER: C23-01845

CASE NAME: RAUL INIGUEZ VS. FIDENCIO GARCIA

HEARING ON SUMMARY MOTION CONT FROM 3/11/2026 PER TR

FILED BY:

TENTATIVE RULING:

This hearing was continued from March 11, 2026. Before the Court is a motion for summary judgment/summary adjudication filed by defendant Acme Builders, Inc. For the reasons set forth, the motion is **denied**.

Background

This case arises out of a collision between an Amtrak train and a motor vehicle in which Plaintiff was a passenger. Plaintiff asserts claims for motor vehicle accident and general negligence against defendants Acme Builders, Inc., Fidencio Garcia who was the driver of the vehicle, and Guillermo Alvarez, the owner of the vehicle. Other relevant facts are addressed below.

Legal Standards for Ruling on Defendants' Motion

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant meets this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue of fact exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions." [Citation.]" (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil